

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X

HUNTER ROBINSON,

Plaintiff,

Index No. _____

vs.

COMPLAINT

THE CITY OF NEW YORK;
BRYAN WILSON (Shield No. 17971); LUIIS
LINARES (Shield No. 2981); MATTHEW
ORNSTEIN (Shield No. 21885);
SHAHZEB AHMED (Shield No. 26865);
and JOHN and JANE DOE.

Defendants.

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PRELIMINARY STATEMENT

1. On January 20, 2023, the NYPD, while patrolling outside his home in the Lincoln Houses in Harlem, pursued and arrested then-17 year-old Plaintiff Hunter Robinson after he merely “locked” eyes and turned around while walking home from a friend’s apartment. Despite this patently unlawful stop, Defendants continued to prosecute Mr. Robinson, resulting in his wearing an ankle monitor, struggling in school, and grappling with damages to his reputation and emotional wellbeing.
2. Mr. Robinson accordingly brings this lawsuit to remedy the violation of his rights secured by the New York State Constitution; the New York City Administrative Code and the laws of the State of New York.

JURISDICTION

3. This action is brought pursuant to the laws of the City and State of New York.

Jurisdiction is conferred upon this Court by Article VI, § 7 of the Constitution of the State of New York establishing the Supreme Court as a court of general original jurisdiction over matters in law and equity,

VENUE

4. Venue is properly laid in the Supreme Court of the State of New York, County of New York, because the Plaintiff's claims arose in the County of New York.

PARTIES

5. Plaintiff Hunter Robinson is a citizen of the United State, and is and was at all relevant times, a resident of the City of New York, County of New York.
6. Defendant the City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department that acts as its agent in the area of law enforcement and for which it is ultimately responsible.
7. Defendant the City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the NYPD.
8. Defendants John and Jane Doe, whose actual names Plaintiff has been unable to ascertain notwithstanding reasonable efforts to do so, but who are herein referred to by the fictitious designation "John Doe" and "Jane Doe," are or were police officers, agents, employees, or assigns of the New York City Police Department ("NYPD"), acting and functioning as officers, employees and agents of the Defendant City, and otherwise

performed and engaged in conduct incident to the performance of their lawful functions in the course of their duties.

9. Defendant BRIAN WILSON (Shield No. 17971, Tax ID No. 964345) (hereinafter Officer Wilson) was at all relevant times described herein an NYPD officer, employed by the City of New York. At all relevant times described herein he was acting under color of New York state law, and acting in the course and scope of his duties. He is sued in his individual capacity.
10. Officer Wilson is entitled to indemnification by the City of New York under New York law for any liability arising from his conduct described herein.
11. Officer Wilson is entitled to indemnification by the City of New York pursuant to contract for any liability arising from his conduct described herein.
12. Defendant MATT ORNSTEIN (Shield No. 21885, Tax ID No. 965383) (hereinafter Officer Ornstein) was at all relevant times described herein an NYPD officer, employed by the City of New York. At all relevant times described herein he was acting under color of New York state law, and acting in the course and scope of his duties. He is sued in his individual capacity.
13. Officer Ornstein is entitled to indemnification by the City of New York under New York law for any liability arising from his conduct described herein.
14. Officer Ornstein is entitled to indemnification by the City of New York pursuant to contract for any liability arising from his conduct described herein.
15. Defendant SHAHZEB AHMED (Shield No. 26865, Tax ID No. 964865) (hereinafter Officer Ahmed) was at all relevant times described herein an NYPD officer, employed by the City of New York. At all relevant times described herein he was acting under color of

New York state law, and acting in the course and scope of his duties. He is sued in his individual capacity.

16. Officer Ahmed is entitled to indemnification by the City of New York under New York law for any liability arising from his conduct described herein.

17. Officer Ahmed is entitled to indemnification by the City of New York pursuant to contract for any liability arising from his conduct described herein.

18. Defendant LUIS LINARES (Shield No. 2981, Tax ID No. 938861) (hereinafter Sargent Linares) was at all relevant times described herein an NYPD officer, employed by the City of New York. At all relevant times described herein he was acting under color of New York state law, and acting in the course and scope of his duties. He is sued in his individual capacity.

19. Sargent Linares is entitled to indemnification by the City of New York under New York law for any liability arising from his conduct described herein.

20. Sargent Linares is entitled to indemnification by the City of New York pursuant to contract for any liability arising from his conduct described herein.

STATEMENT OF FACTS

THE VIOLATION OF PLAINTIFF'S RIGHTS

21. On January 20, 2023, Plaintiff was lawfully in the vicinity of the Lincoln Houses complex, a New York City Housing Authority development located in Upper Manhattan, which Plaintiff calls home.

22. On that date, Plaintiff was detained, searched and arrested by the Individual Defendants without any lawful basis.

23. Following his arrest, Plaintiff was detained at the 25th precinct and later at Central Booking.
24. The Individual Defendants then initiated prosecution based upon Plaintiff's unlawful arrest in the New York County Supreme Court action *People v. Robinson*, 70606-23.
25. During the course of that proceeding, the Individual Defendants provided numerous records to the District Attorney's Office and provided false testimony claiming a lawful justification for Plaintiff's search and seizure.
26. Also during the course of that proceeding, Plaintiff's liberty was further restricted when he was required to wear an ankle monitor from May 2023 through February 2024 and was subjected to time and location restraints.
27. Based upon a finding that the Defendants' "stop and pursuit of [Mr. Robinson] was unlawful," the wrongful charges were dismissed by Hon. Judge Kate Paeck of the New York County Criminal Court by dated January 30, 2024 and rendered in court on February 5, 2024.

THE INJURIES TO PLAINTIFF

28. This action seeks damages on behalf of Plaintiff for the extraordinary emotional pain and suffering, loss of liberty, violation of his rights secured under State and Local law and injuries to his person that Plaintiff was forced to endure as a consequence of the Individual Defendants decidedly wrongful actions.
29. The Individual Defendants' actions were wanton, reckless, and malicious, as well as in blatant disregard of Plaintiff's civil rights, and as such the Individual Defendants are liable for punitive damages, as is the City of New York under the doctrine of *respondeat superior*.

30. All of the causes of action pleaded herein fall within one or more of the exceptions set forth in New York's Civil Practice Law & Rules 1602 with respect to joint and several liability.

FIRST CLAIM FOR RELIEF

**False Arrest and False Imprisonment Against the Individual Defendants
and the City of New York**

31. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.
32. Plaintiff was arrested, handcuffed, and detained unlawfully by the Individual Defendants.
33. That at all times hereinafter mentioned, said arrest, confinement, search and restraint of liberty was not otherwise privileged.
34. Plaintiff was conscious of the confinement and did not consent to such confinement.
35. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.
36. As a result of the above tortious conduct, the Individual Defendants are liable for punitive damages.
37. The City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

SECOND CLAIM FOR RELIEF

**N.Y.C. Admin. Code §§ 8-801 to 8-807 Against the Individual Defendants
and the City of New York**

38. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

39. Plaintiff's right to be free from unreasonable searches and seizures was violated by the conduct of the Individual Defendants.
40. The City of New York is liable as the employer of the Individual Defendants under New York City Administrative Code § 8-803(b).
41. Qualified immunity is no defense to this claim.
42. As a result of the above unconstitutional conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.
43. As a result of the above unconstitutional conduct, the Individual Defendants are liable for punitive damages.

THIRD CLAIM FOR RELIEF

Malicious Prosecution Against the Individual Defendants and the City of New York

44. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.
45. The Individual Defendants initiated a prosecution against Plaintiff without probable cause, and with malice, and that prosecution resolved in a complete dismissal of the charges, in favor of Plaintiff.
46. Any presumption of probable cause conferred by the grand jury indictment is rebutted because the indictment was procured through false evidence and statements.
47. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.
48. As a result of the above unconstitutional conduct, the Individual Defendants are liable for punitive damages.

49. The City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

FOURTH CLAIM FOR RELIEF

Negligent Hiring, Screening, Retention, Supervision and Training Against the City of New York

50. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

51. The City of New York negligently hired, screened, retained, supervised, and trained the Individual Defendants. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff's rights under the Constitution of the United States and the Constitution of the State of New York, and committed torts actionable under the common laws and statutes of the State and New York.

52. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

53. As a result of the above unconstitutional conduct, the Individual Defendants are liable for punitive damages.

54. The City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

FOURTH CLAIM FOR RELIEF

Intentional and Negligent Infliction of Emotional Distress Against the Individual Defendants and the City of New York

55. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

56. The Individual Defendants engaged in extreme and outrageous conduct, which intentionally and/or negligently caused severe emotional distress to Plaintiff.
57. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.
58. As a result of the above unconstitutional conduct, the Individual Defendants are liable for punitive damages.
59. The City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

FIFTH CLAIM FOR RELIEF

Violation of Article I, §12 of the New York State Constitution Against the Individual Defendants and the City of New York

60. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.
61. Such conduct breached the protections guaranteed to plaintiff by the New York State Constitution, including but not limited to, Article 1, §§ 1, 6, 8, 9, 11, and 12, and including the following rights:
- i. freedom from unreasonable search and seizure of her person and property;
 - ii. freedom from arrest without probable cause;
 - iii. freedom from false imprisonment, that being wrongfully detained without good faith, reasonable suspicion, or legal justification, and of which wrongful detention plaintiff was aware and did not consent;
 - iv. freedom from the lodging of false charges against him by police officers and prosecutors, including on information and belief, by some or all of the individual defendants; and
 - v. freedom from deprivation of liberty without due process of law.
62. As a direct and proximate result of defendants' deprivations of plaintiff's rights, privileges, and immunities guaranteed by the New York State Constitution.

63. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

64. As a result of the above unconstitutional conduct, the Individual Defendants are liable for punitive damages.

65. The City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

WHEREFORE, Plaintiff demands the following relief jointly and severally against all of the Individual Defendants, as well as the City of New York:

- a. Compensatory damages;
- b. Punitive damages;
- c. The convening and empaneling of a jury to consider the merits of the claims herein;
- d. Costs and interest and attorney's fees;
- e. Such other and further relief as this court may deem appropriate and equitable.

Dated: New York, New York
April 16, 2024



Emily Ponder Williams
Neighborhood Defender Service of Harlem
Attorneys for Petitioner
317 Lenox Avenue, 10th Floor
New York, New York 10027
(212) 876-5500
eponder@ndsny.org

VERIFICATION

STATE OF NEW YORK):

SS:

COUNTY OF NEW YORK):

HUNTER ROBINSON, being duly sworn, deposes and says:

1. I am the Plaintiff in this proceeding.
2. I have read the contents of the foregoing Complaint.
3. The information stated therein is true to my own knowledge except as to those matters therein stated to be alleged upon information and belief, and as to those matters I believe the information to be true.

HUNTER ROBINSON

Sworn to before me this

_____ day of April, 2024

NOTARY PUBLIC

VERIFICATION

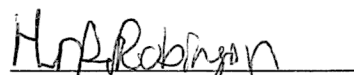
STATE OF NEW YORK):

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HUNTER ROBINSON

Sworn to before me this

16th day of April, 2024**ALICE FONTIER**
Notary Public, State of New York
Reg. No. 02FO6436251
Qualified in New York County
Commission Expires 07/11/2026
NOTARY PUBLIC**ALICE FONTIER**
Notary Public, State of New York
Reg. No. 02FO6436251
Qualified in New York County
Commission Expires 07/11/2026